

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: NATIONSTAR MORTGAGE, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to July 30, 2026, at 9:00 a.m.

3. 9:00 AM CASE NUMBER: C24-00153

CASE NAME: ADRIANNA DUCKETT VS. ROGER CHANG

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Court is in receipt of the Declaration of Fatima Montanez Regarding Disbursement. The Declaration notes that forty-five settlement checks remain uncashed but does not indicate whether any checks were returned undelivered or confirm that it conducted an "Aggrieved Employee Address Search." Upon receipt of confirmation that all efforts to find and distribute funds to Aggrieved Employees previously approved by the Court have been complied with, the Court will approve the final distribution.

4. 9:00 AM CASE NUMBER: C24-02345

CASE NAME: CAROLINE SUN CHANG VS. BMW OF NORTH AMERICA, LLC

***HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES**

FILED BY: CHANG, CAROLINE SUN

TENTATIVE RULING:

Pursuant to a settlement agreement, Plaintiff Caroline Sun Change moves for a determination regarding her attorney's fees and costs. Defendants BMW of North America and Import Motors Inc object to the amount sought by Plaintiff. Although Plaintiff appeared to anticipate that Defendants would object to the fees in their entirety, that is not the case. Defendants also object that Plaintiff has not filed a Memorandum of Costs.

The Court noted several issues with Plaintiff's requested attorney's fees. Defendants identified many of these as well. Plaintiff appears to have overbilled in more than one way. The first notable overbilling relates to duplication. Plaintiff tends to bill 0.1 (or more) each to several completely related tasks, thus resulting in rounding up for each of those tasks. For example, Plaintiff bills separately for reviewing different chunks of documents, or for Drafting Special Interrogatories and the Declaration of Necessity.

The second area of overbilling relates to unreasonable amounts of time expended. For example, Plaintiff billed 0.4 (24 minutes) to reviewing each of the Defendant's Answers. These answers contained five pages of semi-substantive but entirely standard information and affirmative defenses. The Court was able to review these Answers in less than three minutes each, and the Court is not a lemon law expert. The disingenuous overbilling that is *easy* to identify renders suspect the other times

listed.

The third area of overbilling involves billing for clerical work. Although it is not always clear what is clerical and what is attorney work, there are certain entries that are clearly clerical, especially when contrasted with time spent on similar tasks billed differently, which are clearly attorney. For example, where Plaintiff bills to “receive” discovery, that could be clerical or attorney, but it becomes clearly clerical when contrasted with the subsequent (substantial) time spent on “review.” Even an attorney in a small firm cannot bill attorney rates for clerical time.

The fourth area is the hardest. Defendant convincingly shows that Plaintiff was essentially non-communicative about settlement at many points, despite the many hours billed to reviewing the settlement. However, the Court is not able to disaggregate the work as Defendant requests.

While there appears to be nothing unusual about this case, the recovery is substantial. Defendants argue that Plaintiff cannot be expected to drag out the litigation and increase fees. The end result for the Plaintiff in payment is very close to the purchase price for the vehicle, and the defects in the vehicle were not catastrophic. So perhaps Plaintiff’s longer attention to the case and resistance to resolution paid off. That does not excuse overbilling, improper billing, or inappropriate malingering, but it does counterbalance, in part, the allegations regarding counsel’s unwillingness to resolve the case and the corresponding billing that occurred.

What cannot be denied is that Plaintiff has overbilled, as even Plaintiff’s exhibits show how high the ultimate request is. It is three to four times the amounts sought in other cases with one exception, and it is higher than that one.

The Court was able to perform analysis as follows and will reduce accordingly.

Clerical work

Date	Description	Original Time	New Time
8/30/2024	Finalize and file lawsuit	0.20	0.10
9/5/2024	Review conformed copies lawsuit, complaint, civil case cover sheet, summons (3 separate tasks)	0.30	0.10
12/30/2024	Receive BMW NA and Concord BMW discovery	0.20	0.00
1/7/2025	Prepare and file CMS ¹	0.50	0.30

¹ This CMS contained a generic statement of the case, a check box for mediation, the least helpful “discovery” information possible, simply listing “written discovery” and “depositions” as “per code,” and a

1/9/2025	Receive document production from defendant ²	0.50	0.00
7/1/2025	Prepare and file CMS	0.50	0.30
7/1/2025	Prepare Deposition with Steno	0.20	0.00
9/5/2025	Receive deposition transcripts and documents from Steno	0.20	0.00
9/20/2025	Review and finalize discovery to be sent out (duplicative of discovery drafting occurring same day)	0.20	0.00
2/9/2026	Review SAR signed by client and send	0.50	0.10
Total		3.30	0.90

Overbilling and Duplication

Date	Description	Original Time	New Time
9/11/2024	Analyze Court's Notice CMC	0.30	0.10
10/14/2024	Analyze BMW's Answer	0.40	0.20
10/28/2024	Analyze Dealership's Answer	0.40	0.20
12/6/2024	Review repair order and update service summary (billed separately)	0.60	0.30
12/27/2024	Review Defendants' Case Management Statement ³	0.50	0.10

note of intent to meet and confer. The non-clerical portion of this could not have taken more than 3 minutes to complete.

² If this were the analysis of the document production, this would duplicate the entries specifically noting the review.

³ Defendant's CMS was not terribly more informative than Plaintiff's, although it did contain some dates for discovery. There is no conceivable way it could take thirty minutes to review this document.

12/30/2024	Initial analysis of BMW's responses to discovery (separately billed for each category, and separate from the actual analysis the next week)	0.40	0.10
12/30/2024	Initial analysis of Dealer's responses to discovery (separately billed for each category, and separate from the actual analysis the next week)	0.40	0.10
1/9/2025	Combined log of individual billing entries for review of document production	5.40	1.50
1/13/2025	Combined log of individual billing entries for reviewing further documents	4.70	1.00
3/24/2025	Review repair order and update service summary (billed separately)	0.60	0.30
3/25/2025	Prepare and serve amended Notice of Deposition	0.30	0.10
3/28/2025	Receipt and review Defendants' verification	0.20	0.10
5/21/2025	Review repair order and update service summary (billed separately)	0.60	0.30
7/1/2025	Prepare and file case Management Statement ⁴	0.50	0.20
7/1/2025	Prepare Notice of Posting of Jury Fees	0.50	0.10

⁴ This Case Management Conference statement actually had two dates added, but nothing else changed from the prior.

7/28/2025	Review repair order and update service summary (billed separately)	0.60	0.30
8/8/2025	Prepare and serve Notice of Deposition	0.30	0.10
10/9/2025	Combined log of individual billing entries for reviewing further documents	2.50	1.10
10/8/2025	Receipt and review BMW's verifications	0.20	0.10
10/13/2025	Review repair order and update service summary (billed separately)	0.60	0.30
1/12/2026	Review Settlement Agreement	0.50	0.30
2/5/2026	Review updated Settlement Agreement	0.50	0.10
Total		20.90	6.90

This represents a reduction by 16.4 hours to 72.2 hours.

The Court has also considered Defendants' objection to counsel's requested hourly fee. The hourly fee does not appear to be unreasonable, given rates for someone with over 20 years of experience.

The final fee award is \$39,710. The Court declines to award fees for reply briefing, given the overbilling. Had Plaintiff not overbilled, it is likely the amount would not have been opposed.

Costs

Defendants also argue that Plaintiff's failure to file a Memorandum of Costs renders her costs requests invalid. Costs are, however, part of settlement agreement and will be awarded as requested.

5. 9:00 AM CASE NUMBER: C25-01252
CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. JHELLE ROSAROSO
***HEARING ON MOTION IN RE: SET ASIDE CCP 664.6 AND ENTER JUDGMENT**
FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I
TENTATIVE RULING: